

24NNCV06818 24NNCV06818

County: los-angeles

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Case Number: 24NNCV06818 Hearing Date: July 17, 2026 Dept: A

TENTATIVE RULING

JULY 17, 2026

MOTION FOR LEAVE TO AMEND

Los

Angeles Superior Court Case # 24NNCV06818

MP: Plaintiffs

Daniel A. Bosnoyan and Anna Sahakyan

RP: Defendant

BMW of North America, LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Daniel A. Bosnoyan and Anna Sahakyan ("Plaintiffs") allege that they leased a 2024 BMW M340i, which was warranted by Defendant BMW of North America, LLC ("BMW"). Plaintiffs allege that the vehicle was delivered with serious defects and nonconformities to the warranty. They claim they presented the vehicle for repair, but BMW and Defendant Pacific BMW ("Pacific") were unable to conform the vehicle to applicable warranties after a reasonable number of attempts.

The Complaint, filed December 27, 2024, alleges: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of Song-Beverly Act § 1793.2; and (4) Negligent Repair.

MOTION ON CALENDAR:

On June 8, 2026, Plaintiffs filed a Motion for Leave to File the Amended Complaint. On July 6, 2026, BMW filed an opposition. On July 9, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (C.C.P. § 473(a)(1).)

"[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial ...

this policy should be applied only '[w]here no prejudice is shown to the adverse party. ... A different result is indicated '[w]here inexcusable delay and probable prejudice to the opposing party' is shown." (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487 [citations omitted].)

A motion to amend a pleading must include (1) a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and (2) a statement of what allegations in the previous pleading are proposed to be deleted or added. (C.R.C. Rule 3.1324(a).) These changes should identify by page, paragraph, and line number where the allegations added/removed are located.

The motion shall also be accompanied by a declaration attesting to (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) why the request for amendment was not made earlier. (C.R.C. Rule 3.1324(b).)

In ruling on a motion for leave to amend a pleading, the court does not consider the merits of the proposed amendment, because "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) While the trial court may deny a motion for leave to amend on grounds including that the party seeking the amendment has caused unreasonable delay in doing so, it probably abuses its discretion if it denies any such motion in the absence of a finding of prejudice to the opposing side. (See Thompson Pacific Construction, Inc. v. City of Sunnyvale (2007) 155 Cal.App.4th 525, 544-545.)

ANALYSIS:

Plaintiffs move for leave to amend the Complaint. A redlined copy of the proposed First Amended Complaint ("FAC") is attached as Exhibit 6 to counsel Richard M. Wirtz's declaration.

In support of the motion, Plaintiff provides Mr. Wirtz's declaration. Counsel states that the deposition of BMW's PMQ, Jose Grijalva, took

place on January 13, 2026. (Wirtz Decl., ¶¶6-7, Ex. 1 [Grijalva Depo.].) Mr. Grijalva testified:

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And then does BMW require its authorized dealerships to make note in the repair orders if they see -- if the technicians see any misuse, abuse, or tampering of the vehicle?

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That would depend on what it is. A lot of times, you know, it's difficult to -- to see that during the repair. The technicians are there to try and fix the vehicle. They're not trying to determine any malfeasance or misuse or abuse. They're looking at data and trying to fix the concern. So it's not their -- it's not their primary focus. So is it possible that they may miss something, of course. But when they do find it, generally they do note it on the repair order.

(Grijalva Depo. at 62:7-19.)

Mr. Wirtz states that based on Mr.

Grijalva's testimony and Defendants' lack of evidence (documentation, repair records, witness testimony, etc.), Plaintiffs had no reason to believe BMW intended to contend that the defects and nonconformities were caused by tampering, misuse, abuse, modification, or any other form of outside influence. (Wirtz Decl., ¶ 8-9.) However, on May 29, 2026, during the Mandatory Settlement Conference ("MSC"), Mr. Wirtz states that BMW disclosed for the first time that the conditions experienced by Plaintiffs were attributable to tampering. (Id., ¶10, Ex. 2 [BMW's MSC Statement].) Specifically, BMW contended:

First,

there is strong evidence of vehicle tampering. Our expert, through vehicle inspection and exemplar testing has evidence that the issues experienced with the vehicle -- check engine lights with essentially no associated symptoms, are easily initiated by temporarily disconnecting the purge valve from the top of the vehicle's engine, an easily-accessible part. When this part is disconnected and the vehicle driven, it is only minutes later that the check engine light illuminates and the same code descriptions appear in the exemplar vehicle.

(BMW MSC Statement at pp.1-2.)

Mr. Wirtz states this was the first time Plaintiffs became aware of BMW's intention to rely upon a tampering or outside influence defense in this action.

(Wirtz Decl., ¶11.) Mr. Wirtz states that after the MSC, Plaintiffs promptly began investigating BMW's new position and served Request for Production and Special Interrogatories, set three, and noticed another PMQ deposition directed at the tampering contentions. (Id., ¶13, Exs. 3-5.)

Mr. Wirtz states the effect of the amendment is to add a cause of action under the Unruh Civil Rights Act (Civ. Code, §§ 51, 52, et seq.). (Wirtz Decl., ¶15.) He states the proposed amendments are necessary and proper because facts recently discovered give rise to a good faith belief that BMW's allegations of tampering and outside influence may not have been applied in a uniform or nondiscriminatory manner and warrant further adjudication through an Unruh claim. (Id., ¶16.) He states the facts giving rise to the proposed amendments were discovered on or after May 29, 2026 upon receiving BMW's MSC Statement. (Id., ¶17.) He states Plaintiffs did not seek to amend earlier because the factual basis for an Unruh claim were unknown and could not be discovered earlier and Plaintiffs sought amendment promptly after discovering the facts. (Id., ¶¶18-19.) The specific proposed amendments are listed in paragraph 20, subsections (a) to (n).

In opposition, BMW argues that the amendment is improper because Plaintiffs cannot attempt to allege in the proposed FAC that BMW falsely labeled Plaintiffs' vehicle as having been subjected to "outside influence" and yet argue that they had no reason to believe BMW intended to assert such a position (as no repair orders or produced documents indicated such position) until BMW raised it at the MSC. BMW argues: "Plaintiffs affirmatively concede that, prior to the Mandatory Settlement Conference, there was no evidence that BMW had denied warranty coverage, refused service, failed repairs, or otherwise acted upon any belief that the Subject Vehicle had been subjected to tampering or outside influence. ... If the alleged discriminatory conduct occurred before the MSC, Plaintiffs' own motion and declaration establish that they have no

factual basis to allege it. If, on the other hand, the alleged discriminatory conduct is BMW's disclosure and assertion of its outside-influence defense during the Mandatory Settlement Conference, then the claim is predicated entirely upon privileged litigation conduct barred by Civil Code section 47, subdivision (b)." (Opp. at p.6.)

The Court does not find the contentions to be inconsistent because if there was no reason for Plaintiff to believe in a tampering/outside influence defense, then they had no prior reason to assert such a claim. It may very well be that there is no documentary proof or evidence of tampering/outside influence and the claim may be dismissed but, at this stage, the Court will allow the amendment to proceed and BMW may file a demurrer to fully address the substantive merits of its positions regarding the litigation privilege and whether the Unruh Act claim states sufficient facts.

Next, BMW argues that leave to amend should be denied because its defense is predicated on litigation conduct protected by Civil Code, § 47(b). BMW argues that asserting affirmative defenses and setting forth its litigation position is protected conduct and Plaintiffs cannot transform BMW's assertion of a defense into an actionable discrimination claim. In the Fifth Cause of Action, Plaintiffs propose a separate theory of liability that BMW engaged in discriminatory practices by designating Plaintiffs' vehicle as having "outside influence" based on their ancestry and national origin.

(See Proposed FAC at ¶¶66-69.) While litigation communications are protected and Plaintiffs' proposed Fifth Cause of Action only arose after Plaintiffs learned of BMW's newly asserted defense theory, the Court does not read the cause of action to be a claim arising out of or seeking to impose liability for BMW's protected communications made in a judicial or quasi-judicial proceeding. It may be that Plaintiffs were previously unaware of the cause of action and they now have facts, discovery, etc. that support this cause of action. However, at this stage, the Court may not prematurely cut off Plaintiffs' right to bring such a claim.

Finally, BMW argues that it would be prejudiced by the FAC because the action has been pending since December 27, 2024, fact discovery has been completed, and the FAC would add a new claim based on speculative facts and expand the litigation's scope from an SBA case to a discrimination action.

However, regardless of whether the proposed amendment were allowed, discovery would likely continue based on BMW's assertion of vehicle tampering and outside influence. Furthermore, there is no trial date such that the parties may still conduct discovery.

Based on the moving papers and Mr.

Wirtz's declaration, the Court grants Plaintiffs' motion to file the FAC. The motion papers address the factors under CRC Rule 3.1324. Mr. Wirtz's declaration and Exhibit 6 provide

the effect of the amendment, explain why

the amendment is necessary and proper, and justify why the amendment was not

made earlier. Finally, the Court recognizes the liberal policy in

allowing amendment. "[T]he court's

discretion will usually be exercised liberally to permit amendment of the

pleadings. The policy favoring amendment

is so strong that it is a rare case in which denial of leave to amend can be

justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422,

1428.)

RULING:

In the event the

parties submit on this tentative ruling, or a party requests a signed order or

the court in its discretion elects to sign a formal order, the following form

will be either electronically signed or signed in hard copy and entered into

the court's records.

ORDER

Plaintiffs Daniel A. Bosnoyan and Anna Sahakyan's Motion for Leave to File the Amended Complaint came on

regularly for hearing on July 17, 2026 with appearances/submissions as noted in

the minute order for said hearing, and the court, being fully advised in the

premises, did then and there rule as follows:

THE MOTION FOR LEAVE

TO FILE THE AMENDED COMPLAINT IS GRANTED.

PLAINTIFFS ARE

ORDERED TO FILE A CLEAN COPY OF THE FIRST AMENDED COMPLAINT WITHIN TWO COURT

DAYS FOLLOWING THE HEARING. DEFENDANT WILL HAVE 30 DAYS TO FILE A
RESPONSIVE PLEADING.

A CASE MANAGEMENT
CONFERENCE IS SCHEDULED FOR OCTOBER 13, 2026 AT

9:00 AM

PLAINTIFF BOSNOYAN TO PROVIDE NOTICE.

IT IS SO ORDERED.